25-2247

25-2247

IN THE

United States Court of Appeals for the Second Circuit

IN THE
United States Court of Appeals for the Second Circuit

GIDEON RAPAPORT,

Plaintiff-Appellant,

Gideon Rapaport,
Plaintiff-Appellant,

— v. —

ABIGAIL FINKELMAN,

Defendant-Appellee.

Abigail Finkelman,
Defendant-Appellee.

On Appeal from the United States District Court
for the Southern District of New York
Case No. 1:24-cv-05942 (JGLC)

On Appeal from the United States District Court for the Southern District of New York
Case No. 1:24-cv-05942 (JGLC)

BRIEF FOR APPELLEE ABIGAIL FINKELMAN

BRIEF FOR APPELLEE ABIGAIL FINKELMAN

Max Rodriguez
LAW OFFICE OF MAX RODRIGUEZ PLLC
575 5th Avenue, 14th Floor
New York, NY 10017
(646) 741-5167
max@maxrodriguez.law
Counsel for the Defendant-Appellee, Abigail Finkelman

Max Rodriguez
LAW OFFICE OF MAX RODRIGUEZ PLLC
575 5th Avenue, 14th Floor
New York, NY 10017
max@maxrodriguez.law
Counsel for the Defendant-Appellee, Abigail Finkelman
(646) 741-5167

TABLE OF CONTENTS

Page

JURISDICTIONAL STATEMENT 1

COUNTERSTATEMENT OF ISSUES PRESENTED FOR REVIEW 1

COUNTERSTATEMENT OF THE CASE 2

I. Factual Allegations 2

II. Relevant Procedural History 6

A. Rapaport files this case, which is dismissed for failure to state a claim 6

B. Rapaport files a duplicative lawsuit against Finkelman in response to the dismissal of his claims, and the District Court stays that duplicative lawsuit and imposes a pre-motion letter requirement on Rapaport as an exception to the District Court's customary individual practices 9

C. Finkelman proceeds in filing her renewed motion for sanctions and alternative motion for attorney's fees and costs under New York's Anti-SLAPP law 11

III. Relevant Decision Below 12

SUMMARY OF THE ARGUMENT 17

STANDARD OF REVIEW 20

ARGUMENT 20

I. The District Court's grant of the motion to dismiss with prejudice should be affirmed 20

A. Rapaport failed to state a claim for defamation against Finkelman 21

1. Finkelman is immune from Rapaport's claims under New York Civil Rights Law § 74 22

2. Finkelman's statements were non-actionable opinions 30

3. Even if actionable, Finkelman's statements were true 34

4. Even if actionable, and even if false, Rapaport still failed to state a claim against Finkelman because he did

TABLE OF AUTHORITIES

Cases: **Page(s)**

Chambers v. NASCO, Inc.,
501 U.S. 32 (1991) 44, 45

Cholowsky v. Civiletti,
69 A.D.3d 110 (2d Dep't 2009) 23, 29

Corp. Training Unlimited, Inc. v. NBC,
868 F. Supp. 501 (E.D.N.Y. 1994) 27

Cortes v. Twenty-First Century Fox America, Inc.,
285 F. Supp. 3d 629 (S.D.N.Y. 2018) 34

Daleden v. Planned Parenthood Fed. of America,
No. 21-2068, 2022 WL 1013982 (2d Cir. Apr. 5, 2022) 25, 31, 33

Delaney v. HC2, Inc.,
761 F. Supp. 3d 641 (S.D.N.Y. 2025) 8

Dolphin v. Bank of Am. Mortg. Co.,
641 Fed. Appx. 131 (3d Cir. 2016) 43

Enmon v. Prospect Capital Corp.,
675 F.3d 138 (2d Cir. 2012) 20

Fine v. ESPN, Inc.,
11 F. Supp. 3d 209 (N.D.N.Y. 2014) 29

Fishof v. Abady,
280 A.D.2d 417 (1st Dep't 2001) 26

Ford v. Levinson,
90 A.D.2d 464 (1st Dep't 1982) 23, 25

Friedman v. Bloomberg L.P.,
884 F.3d 83 (2d Cir. 2017) 25, 27

Fuji Photo Film U.S.A., Inc. v. McNulty,
669 F. Supp. 2d 405 (S.D.N.Y. 2009) 21

Statutes:

28 U.S.C. § 1291 1

28 U.S.C. § 1332 1

N.Y. Civ. Rights Law § 74 4

N.Y. Civ. Rights Law § 76-a 6

JURISDICTIONAL STATEMENT

The District Court had jurisdiction pursuant to 28 U.S.C. § 1332(a)(2), because Plaintiff-Appellant Gideon Rapaport is a Canadian citizen, Defendant-Appellee Abigail Finkelman is a New York citizen, and the amount in controversy was alleged to exceed $75,000. Complaint ¶¶ 1–3. On August 29, 2025, the District Court issued an opinion and order granting Finkelman's motion to dismiss, denying as moot Rapaport's motion for sanctions under the District Court's inherent authority, and denying as moot Finkelman's motion for sanctions under Fed. R. Civ. P. 11(c). The District Court's opinion and order invited Finkelman to file a renewed motion for sanctions under Fed. R. Civ. P. 11(c).

Although there are other pending motions and proceedings in the District Court (including Finkelman's renewed motion for sanctions and an alternative motion for attorney's fees and costs under Civil Rights L. § 70-a(1)(a)), and there is not yet a judgment from the District Court, Rapaport filed a timely notice of appeal from the August 29, 2025 opinion and order, the District Court's opinion and order is (at least arguably) a "final decision" as to Rapaport's claims under 28 U.S.C. § 1291.

COUNTERSTATEMENT OF ISSUES PRESENTED FOR REVIEW

1. Did the District Court err in granting Finkelman's motion to dismiss for failure to state a claim with prejudice?

2. Did the District Court err in denying as moot Rapaport's motion for sanctions
2. Did the District Court err in denying as moot Rapaport's motion for
under the District Court's inherent authority because that motion was predicated on
sanctions under the District Court's inherent authority because that motion was
claiming Finkelman's dismissal arguments were frivolous, and the District Court
predicated on claiming Finkelman's dismissal arguments were frivolous, and the
adopted Finkelman's dismissal arguments?
District Court adopted Finkelman's dismissal arguments?
3. Can Rapaport raise arguments concerning any other matter as a part of this appeal
3. Can Rapaport raise arguments concerning any other matter as a part of
when his notice of appeal was only from the District Court's August 29, 2025
this appeal when his notice of appeal was only from the District Court's August 29,
decision, and there was no other final decision or judgment from which he could yet
2025 decision, and there was no other final decision or judgment from which he
appeal?
could yet appeal?

COUNTERSTATEMENT OF THE CASE
COUNTERSTATEMENT OF THE CASE

I. A. Factual Allegations
I. Factual Allegations

Accepting the allegations in Rapaport's complaint, App'x 8 ("Complaint") as
Accepting the allegations in Rapaport's complaint, App'x 8 ("Complaint") as
true, his claims concerned a series of posts by Finkelman on X (formerly known as
("Complaint") as true, his claims concerned a series of posts by Finkelman on X
Twitter).[1] Finkelman has an account on X under the name "@clapifyoulikeme."
(formerly known as Twitter). Finkelman has an account on X under the name
Complaint ¶ 11.
"@clapifyoulikeme." Complaint ¶ 11.

On July 28, 2023, Rapaport filed a pro se complaint in another action before the
On July 28, 2023, Rapaport filed a *pro se* complaint in another action before
District Court, *Rapaport v. Iyer et al.*, No. 1:23-cv-06709 (S.D.N.Y.) ("Rapaport I").[2]
the District Court, *Rapaport v. Iyer et al.*, No. 1:23-cv-06709 (S.D.N.Y.)
Complaint ¶ 9. In Rapaport I, Rapaport asserted claims for defamation, defamation by

[1] All of Finkelman's relevant posts are attached to and incorporated in the Complaint. App'x 9–46.

[2] All of Finkelman's relevant posts are attached to and incorporated in the Complaint. App'x 9–46.
The original complaint in Rapaport I was enclosed in support of Finkelman's motion to dismiss before the District Court.

implication, defamation per se, invasion of privacy and false light, and intentional ("*Rapaport I*").[2] Complaint ¶ 9. In *Rapaport I*, Rapaport asserted claims for infliction of emotional distress against three John Doe defendants. App'x 82–98 defamation, defamation by implication, defamation *per se*, invasion of privacy and ("Rapaport I Complaint"). The complaint in Rapaport I was later amended, with false light, and intentional infliction of emotional distress against three John Doe Rapaport represented by his now-former counsel Richard A. Altman, naming three defendants. App'x 82–98 ("*Rapaport I* Complaint"). The complaint in *Rapaport I* individuals as defendants. App'x 100–20 ("Rapaport I Amended Complaint"). Among was later amended, with Rapaport represented by his now-former counsel Richard other things, the Rapaport I Complaint alleged that the defendants in that case "forged A. Altman, naming three individuals as defendants. App'x 100–20 ("*Rapaport I* a document" by adding "a corporate headshot style photograph of the Rapaport" to a Amended Complaint"). Among other things, the *Rapaport I* Complaint alleged that document he claimed "was in the style of a 'wanted' or 'public enemy' poster" and the defendants in that case "forged a document" by adding "a corporate headshot added "the bolded and capitalized text 'DO NOT ADMIT.'" Rapaport I Complaint style photograph of the Rapaport" to a document he claimed "was in the style of a ¶ 7. Rapaport alleged in Rapaport I that the defendants used this supposedly fictitious 'wanted' or 'public enemy' poster" and added "the bolded and capitalized text 'DO document to stage or forge a photograph that showed the document posted "at the NOT ADMIT.'" *Rapaport I* Complaint ¶ 7. Rapaport alleged in *Rapaport I* that the guarded security gate at 601 Lexington Avenue, New York," the office of Rapaport's defendants used this supposedly fictitious document to stage or forge a photograph former employer, Kirkland & Ellis LLP. *Id.* ¶¶ 6–9.

that showed the document posted "at the guarded security gate at 601 Lexington

Avenue, New York," the office of Rapaport's former employer, Kirkland & Ellis connected posts) discussing the Rapaport I lawsuit. Complaint ¶ 11.

LLP. *Id.* ¶¶ 6–9.

SUMMARY OF THE ARGUMENT

On August 6, 2023, Finkelman, using her X account, made a "thread" (a

Rapaport's claims against Finkelman are, by their own terms, factually and legally series of connected posts) discussing the *Rapaport I* lawsuit. Complaint ¶ 11. insufficient to state a claim. The District Court properly granted the motion to dismiss

with prejudice, and thereby properly denied-as-moot Rapaport's un-noticed sanctions

[2] The original complaint in *Rapaport I* was enclosed in support of Finkelman's motion because it was predicated on arguing that Finkelman's arguments (which the motion to dismiss before the District Court.

District Court adopted as to each issue it reached in the MTD Decision) were Complaint are protected by Civil Rights Law § 74, which provides absolute purportedly not just frivolous, but entirely lacking in support according to him. immunity for statements made by "any person, firm or corporation" that publishes

As to Rapaport's defamation claim against Finkelman, the District Court's grant "a fair and true report of any judicial proceeding…." Civil Rights L. § 74. An of the motion to dismiss with prejudice should be affirmed for any of four independent unambiguous and copious set of precedents in this Court, the District Court, and reasons. First, Finkelman's statements at issue in Rapaport's Complaint are protected by New York State courts confirm this immunity applies to statements regardless of Civil Rights Law § 74, which provides absolute immunity for statements made by "any whether they are drawn directly from filings in the judicial proceeding (rather than person, firm or corporation" that publishes "a fair and true report of any judicial "background material" directly relevant to that proceeding), regardless of whether proceeding...." Civil Rights L. § 74. An unambiguous and copious set of precedents in the statement is in the form of words or media, and is applied liberally to protect this Court, the District Court, and New York State courts confirm this immunity open discourse about judicial proceedings so long as the statement does not imply applies to statements regardless of whether they are drawn directly from filings in the conduct beyond what is at issue in the proceeding. Second, even if not immunized, judicial proceeding (rather than "background material" directly relevant to that Finkelman's statements are not actionable as a matter of law. Third, even if not proceeding), regardless of whether the statement is in the form of words or media, and is immunized and even if actionable, Finkelman's statements were true because they applied liberally to protect open discourse about judicial proceedings so long as the adopted Rapaport's representation that the photograph at issue was fake. So, even statement does not imply conduct beyond what is at issue in the proceeding. Second, taking his allegations as true, her statement (posting the photograph) was even if not immunized, Finkelman's statements are not actionable as a matter of law. unquestionably true. Fourth, even if not immunized, actionable, and plausibly Third, even if not immunized and even if actionable, Finkelman's statements were true false. Finkelman's statements still cannot give rise to a defamation claim because because they adopted Rapaport's representation that the photograph at issue was fake. New York law requires those statements be made with actual malice, which So, even taking his allegations as true, her statement (posting the photograph) was Rapaport did not and cannot plausibly allege. unquestionably true. Fourth, even if not immunized, actionable, and plausibly false,

As to Rapaport's "false light and invasion of privacy" claim, the District Finkelman's statements still cannot give rise to a defamation claim because New York Court's grant of the motion to dismiss with prejudice should be affirmed for any of

law requires those statements be made with actual malice, which Rapaport did not and cannot plausibly allege.

STANDARD OF REVIEW

This Court "review[s] *de novo* a district court's dismissal of a complaint pursuant to Rule 12(b)(6), construing the complaint liberally, accepting all factual allegations in the complaint as true, and drawing all reasonable inferences in the plaintiff's favor." *Rombach v. Chang*, 355 F.3d 164, 169 (2d Cir. 2004). This Court reviews the denial of a motion for sanctions for abuse of discretion. *Int'l Techs. Mktg., Inc. v. Verint Sys. Ltd.*, 991 F.3d 361, 367 (2d Cir. 2021). Abuse of discretion can be found when the district court's decision was the result of "an erroneous view of the law or ... a clearly erroneous assessment of the evidence." *Enmon v. Prospect Capital Corp.*, 675 F.3d 138, 143 (2d Cir. 2012).

ARGUMENT

I. The District Court's grant of the motion to dismiss with prejudice should be affirmed

This Court should affirm the District Court's grant of Finkelman's motion to dismiss Rapaport's claims with prejudice. The two claims asserted — defamation under New York law and "false light and invasion of privacy" under New Jersey law — were procedurally and substantively defective in multiple respects, including the multiple grounds identified in the MTD Decision (along with others). Because this Court reviews the grant of a motion to dismiss *de novo*, the grounds the District Court reached, and any others, can be a sufficient ground to affirm that reached, and any others, can be a sufficient ground to affirm that decision. However, the

District Court's considered reasoning is more than sufficient, and no additional analysis
decision. However, the District Court's considered reasoning is more than
is required here.
sufficient, and no additional analysis is required here.

I. The District Court's grant of the motion to dismiss with prejudice should be affirmed

A. Rapaport failed to state a claim for defamation against Finkelman

Under New York law, a defamation claim must allege "(1) a false statement about the [complainant]; (2) published to a third party without authorization or privilege; (3) through fault amounting to at least negligence on [the] part of the publisher; (4) that either constitutes defamation per se or caused 'special damages.'" *Fuji Photo Film U.S.A., Inc. v. McNulty*, 669 F. Supp. 2d 405, 411 (S.D.N.Y. 2009) (alterations in original) (quoting *Gargiulo v. Forster & Garbus Esqs.*, 651 F. Supp. 2d 188, 192 (S.D.N.Y. 2009)).

However, when the statement alleged to be defamatory is a "communication in a place open to the public or a public forum in connection with an issue of public interest" New York considers the defamation case to be an "action involving public petition and participation" and requires the plaintiff to prove that "any communication which gives rise to the action was made with knowledge of its falsity or with reckless disregard of whether it was false," i.e., actual malice, rather than mere negligence. Civil Rights L. § 76-a(1)(a)(1), (2). The term "public interest" is "construed broadly, and shall mean any subject other than a purely private matter." *Id.* § 76-a(1)(d). This includes public statements concerning

[Transcription ends here. The filed brief continues on the next page.]

motion to dismiss and the denial-as-moot of Rapaport's motion for sanctions under the District Court's inherent authority. The District Court should be affirmed on both issues for the reasons explained above, and accordingly this Court should affirm in this appeal, allowing other pending proceedings (i.e., Finkelman's pending motions for sanctions or, in the alternative, anti-SLAPP fees) before the District Court to proceed to a final judgment.

CONCLUSION

For these reasons, this Court should affirm the District Court's decision granting Finkelman's motion to dismiss and denying Rapaport's motion for sanctions, with costs for this appeal being taxed to Rapaport.

Dated: February 26, 2026
New York, NY

Respectfully submitted,

LAW OFFICE OF MAX RODRIGUEZ PLLC

By: */s/ Max Rodriguez*

Max Rodriguez
575 5th Avenue, 14th Floor
New York, NY 10017
(646) 741-5167
max@maxrodriguez.law

Counsel for Defendant-Appellee,
Abigail Finkelman

CERTIFICATE OF COMPLIANCE

This brief complies with the type-volume limitation of Fed. R. App. P. 32(a)(7)(B) and 32(a)(7)(B)(ii), as modified by Local Rule 32.1(4)(B), because this brief contains 11,818 words, excluding the parts of the brief exempted by Fed. R. App. P. 32(f).

This brief complies with the typeface requirements of Fed. R. App. P. 32(a)(5) and the type style requirements of Fed. R. App. P. 32(a)(6) because this brief has been prepared in a proportionally spaced typeface using Microsoft Office Word in 14-point Times New Roman style.

Dated: February 26, 2026
New York, NY

LAW OFFICE OF MAX RODRIGUEZ PLLC

By: */s/ Max Rodriguez*

Max Rodriguez
575 5th Avenue, 14th Floor
New York, NY 10017
(646) 741-5167
max@maxrodriguez.law

Counsel for Defendant-Appellee,
Abigail Finkelman

CERTIFICATE OF SERVICE

I hereby certify that on February 26, 2026, a true and correct copy of the foregoing was served via ACMS to all counsel of record or parties *pro se*.

/s/ Max Rodriguez
Signature

February 26, 2026
Date

Dated: February 26, 2026
New York, New York

LAW OFFICE OF MAX RODRIGUEZ PLLC

By: /s/ *Max Rodriguez*

Max Rodriguez
575 5th Avenue
14th Floor
New York, NY 10017
(646) 741-5167
max@maxrodriguez.law

Counsel for Defendant-Appellee Abigail Finkelman